03. Affidavit #1 of Eleanor Vance (Page 1 of 4)

Supreme Court of British Columbia â Vancouver No. S-268841

No. S-268841
Vancouver Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:

PACIFIC RIM HOLDINGS LTD. PLAINTIFF

AND:

NORTH SHORE LOGISTICS INC. DEFENDANT

FORM 109 (RULE 22-2)
AFFIDAVIT

I, Eleanor Vance, of 4220 Commerce Way, City of Burnaby, in the Province of British Columbia, Chief Operating Officer, SWEAR (OR AFFIRM) THAT:

1. I am the Chief Operating Officer of the Plaintiff, Pacific Rim Holdings Ltd. ("Pacific Rim"), and as such I have personal knowledge of the matters hereinafter deposed to, except where stated to be on information and belief, and where so stated I verily believe the same to be true.

2. On October 14, 2024, I negotiated and executed on behalf of Pacific Rim a Master Commercial Warehousing & Logistics Agreement with the Defendant, North Shore Logistics Inc. ("North Shore"). Attached hereto and marked as Exhibit "A" to this my Affidavit is a true copy of the said Agreement.

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3. Pursuant to Section 14.2 of Exhibit "A", Pacific Rim was billed tiered warehousing rates based on the representation that North Shore continuously maintained a minimum dedicated threshold of 120,000 cubic feet of climate-controlled space.

4. Between February 2025 and May 2026, Pacific Rim received twenty-eight (28) written notices from its retail grocery distributors stating that inbound refrigerated consignments were being refused or delayed at North Shore’s Richmond terminal due to claimed facility overload.

5. Despite these alleged overloads, North Shore invoiced Pacific Rim for maximum premium capacity utilization rates during every single billing cycle throughout that period, totalling $1,124,500.00.

6. On August 18, 2026, our legal counsel received North Shore’s initial List of Documents. When I reviewed the production, I observed that North Shore had completely omitted all underlying daily inbound/outbound yard logs and had applied complete black-box redactions across every single quarterly operational audit.

7. Without access to unredacted audit figures and inventory volume counts, Pacific Rim

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cannot cross-examine the Defendant’s logistics managers or compute its damages arising from the billing overcharges.

8. On September 22, 2026, our solicitors sent a formal demand letter requesting the production of these specific documents within 14 days. Attached hereto and marked as Exhibit "B" to this my Affidavit is a true copy of the demand letter.

9. To date, the Defendant has refused to produce the documents demanded.

SWORN (OR AFFIRMED) before me)
at the City of Vancouver, in the)
Province of British Columbia, this)
14th day of October, 2026.)
)
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_____)
_____
A Commissioner for taking Affidavits) ELEANOR VANCE
for British Columbia)
Marcus A. Sterling, Practising Barrister
Sterling Litigators LLP, Vancouver, BC

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COMMISSIONER ENDORSEMENT

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Supreme Court of British Columbia â Vancouver No. S-268841

This is Exhibit "A" referred to in the Affidavit #1 of Eleanor Vance,
sworn (or affirmed) before me at Vancouver, British Columbia,
this 14th day of October, 2026.

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A Commissioner for taking Affidavits for British Columbia

[ATTACHED: True Copy of Master Commercial Warehousing & Logistics
Agreement,
dated October 14, 2024 - 11 Pages]

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COMMISSIONER ENDORSEMENT

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This is Exhibit "B" referred to in the Affidavit #1 of Eleanor Vance,
sworn (or affirmed) before me at Vancouver, British Columbia,
this 14th day of October, 2026.

_____

A Commissioner for taking Affidavits for British Columbia

[ATTACHED: True Copy of Formal Document Demand Letter from Sterling
Litigators LLP
to Coastline Business Law Group, dated September 22, 2026 - 3 Pages]